

**NOTICE OF LODGMENT**  
**AUSTRALIAN COMPETITION TRIBUNAL**

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

**Lodgment and Details**

|                  |                                                     |
|------------------|-----------------------------------------------------|
| Document Lodged: | Submissions                                         |
| File Number:     | ACT 1 of 2026                                       |
| File Title:      | APPLICATION BY COLES SUPERMARKETS AUSTRALIA PTY LTD |
| Registry:        | VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL          |



REGISTRAR

Dated: 16/09/2026 5:50 PM

**Important information**

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

COMMONWEALTH OF AUSTRALIA

*Competition and Consumer Act 2010*

**Coles Supermarkets Australia Pty Limited Application for Review of Australian Competition and Consumer Commission Merger Authorisation Determination (MN-01068)**

**IN THE AUSTRALIAN COMPETITION TRIBUNAL**

File No:

ACT 1 of 2026

Re:

Application for review of a determination made by the Australian Competition and Consumer Commissioner under subsection 51ABZE(1) of the *Competition and Consumer Act 2010*

Applicants:

Coles Supermarkets Australia Pty Limited

**ACCC'S SUBMISSIONS IN RESPECT OF O'CONNOR FRESH IGA'S APPLICATION UNDER SECTION 100S(2)(A)**

1. O'Connor Fresh IGA makes an application pursuant to s 100S(2) of the *Competition and Consumer Act 2010* (Cth) (**CCA**) by which it seeks a direction permitting it to file and serve the Grant Affidavit on the basis that the facts to which Mr Grant deposes in the Grant Affidavit were not in existence at the time the ACCC's Determination was made on 30 June 2026 and therefore fall within s 100S(2)(a) of the CCA.<sup>1</sup> Those facts are as follows:
  - 1.1. O'Connor Fresh IGA entered into the Uber Agreement on 21 May 2026 (Grant Affidavit at [6] and Confidential Annexure RNG-1) to offer the Delivery Service. The Delivery Service uses the "Uber Eats" platform;
  - 1.2. on 20 July 2026, O'Connor Fresh IGA commenced offering the Delivery Service to consumers in Kalgoorlie in respect of the majority of its products in its grocery and fresh food ranges (Grant Affidavit at [5]);
  - 1.3. the process by which a consumer places an order for a product or products from O'Connor Fresh IGA using Uber Eats, and by which that order is fulfilled by O'Connor IGA and delivered by an Uber Eats delivery driver (Grant Affidavit at [7]);
  - 1.4. the number of orders received by O'Connor Fresh IGA for the Delivery Service in the period from the week ending 26 July 2026 to the week ending 30 August 2026 and figures about the growth in the volume of orders in terms of sales and number of orders (Grant Affidavit at [8]); and
  - 1.5. the anticipated timeframe for when deli and in-store kitchen products will become available through the Delivery Service (Grant Affidavit at [9]).
2. As identified in the ACCC's submissions in respect of Coles' s 100S(2)(b) application, s 100S(2) is to be interpreted having regard to its statutory context, particularly the fact that the regime established by Divisions 1B and 2 of Part IX of the CCA contemplates

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<sup>1</sup> These submissions use the defined terms as defined in O'Connor Fresh IGA's written submissions dated 4 September 2026 (**OCS**).

that the Tribunal's review of an acquisition determination is to be substantially confined to the materials referred to in the ACCC's reasons for that determination, with only limited and specific supplementation in the manner described in s 100T.<sup>2</sup>

3. The ACCC submits that the information in paragraphs 1.2 to 1.5 above (see OCS at [9]) was not in existence on the date of the ACCC's Determination. It appears that that information only became available on or after 20 July 2026, when Mr Grant identifies that O'Connor Fresh IGA began offering the Delivery Service (Grant Affidavit at [5]). That information is likely to be relevant, and to be of assistance, to the Tribunal in its review of the ACCC's Determination for the reasons identified by O'Connor Fresh IGA.
4. The Uber Agreement (paragraph 1.1 above) is in a different position. While it only came into effect after the date of the ACCC's Determination, it was signed on 21 May 2026 and therefore existed prior to the date of the ACCC's Determination. This leads to the (somewhat inconvenient) conclusion that, as a result of the application of the test set out in s 100S(2)(a) and restrictions set out in s 100T, the Tribunal may allow O'Connor Fresh IGA to provide and have regard to the information in paragraphs 1.2 to 1.5 above under s 100S(2)(a), but not the underlying Uber Agreement.

16 September 2026

Declan Roche, Christopher Tran, Alice Muhlebach and Alexander Tate

Counsel for the ACCC

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<sup>2</sup> These arrangements are described in the Explanatory Memorandum to the *Treasury Laws Amendment (Mergers and Acquisitions Reform) Bill 2024* (Cth), for example at [6.28] ("The Tribunal cannot have regard to any information, documents or evidence which the Commission could not have regard to in making the determination, except in the circumstances provided for in section 100S"), and [6.29] (which refers to s 100S allowing the Tribunal "to take account of a change in circumstances").